

26STCP01541 26STCP01541

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BACKGROUND

This case is a breach of contract matter. Plaintiff

Lauzon Paluch alleges that Defendant Caroline Morici failed to pay for legal services rendered during Defendant's dissolution matter.

On April 17, 2026, Plaintiff filed a

Verified Petition to Compel Binding Arbitration and for Court Appointment of an Arbitrator.

On April 21, 2026, Plaintiff filed a

Motion to Compel Binding Arbitration.

No opposition or reply has been filed.

TENTATIVE RULING

Plaintiff's Motion to

Compel Arbitration is GRANTED.

LEGAL STANDARD

A party to an arbitration

agreement may summarily move or petition the court for an order compelling another non-compliant party to arbitrate their covered claims. (Code Civ. Proc., §§ 1281.2, 1290.2; 9 U.S.C. §§ 4, 6.)

California law, like

Federal law, reflects a strong public policy favoring arbitration and the fundamental principle that arbitration is a matter of contract. (See *AT&T Mobility LLC v. Concepcion* (2011) 563 U.S. 333, 339; *Moncharsh v. Heily & Blase* (1992) 3 Cal.4th 1, 8-9.) “To further that policy, Code of Civil Procedure, section 1281.2 requires a trial court to enforce a written arbitration agreement unless one of three limited exceptions applies. Those statutory exceptions arise where (1) a party waives the right to arbitration; (2) grounds exist for revoking the arbitration agreement; and (3) pending litigation with a third party creates the possibility of conflicting rulings on common factual or legal issues.” (*Acquire II, Ltd. v. Colton Real Estate Group* (2013) 213 Cal.App.4th 959, 967 [internal citation omitted].) “[U]nder both the FAA and California law, ‘arbitration agreements are valid, irrevocable, and enforceable, save upon such grounds as exists at law or in equity for the revocation of any contract.’” (*Higgins v. Superior Court* (2006) 140 Cal.App.4th 1238, 1247; *Quach v. California Commerce Club, Inc.* (2024) 16 Cal.5th 562, 569; *Morgan v. Sundance* (2024) 596 U.S. 411, 419.)

On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and where a party thereto refuses to arbitrate such controversy, the court shall order the petitioner and respondent to arbitrate if it determines an agreement to arbitrate the controversy exists. (Code Civ. Proc., § 1281.2; *Gorlach v. Sports Club Co.* (2012) 209 Cal.App.4th 1497, 1505 [noting that “when presented with a petition to compel arbitration, the trial court’s first task is to determine whether the parties have in fact agreed to arbitrate the dispute.”].)

The petitioner bears the burden of proving the existence of a valid arbitration agreement by a preponderance of the evidence, and the opposing party bears the burden of proving any fact necessary to its defense by the evidentiary standard. (See *Gatton v. T-Mobile USA, Inc.* (2007) 152 Cal.App.4th 571, 579.)

Finally, “[i]f a court of competent jurisdiction, whether in this State or not, has ordered arbitration of a controversy which is an issue involved in an action or proceeding pending before a court of this State, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until an arbitration is had in accordance with the order

to arbitrate or until such earlier time as the court specifies.” (Code Civ. Proc., § 1281.4.) And similarly, under the FAA, a court is required to stay the proceedings for a case that has been referred to arbitration, upon application of one of the parties, during the pendency of such arbitration. (9 U.S.C. § 3.)

DISCUSSION

I.

Existence of Arbitration Agreement

The Court finds that Plaintiff has proven the existence of a valid arbitration agreement between the parties that covers the present dispute. In light of that fact and the lack of any opposition, the Court shall grant the motion.

The party seeking arbitration bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence. (See *Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 164-165 (*Gamboa*).) This can be done “by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party's] signature.” (*Id.* at p. 165 [citing *Bannister v. Marinidence Opco, LLC* (2021) 64 Cal.App.5th 541, 543-544].) Alternatively, this burden can be met by setting forth the agreement's arbitration provisions in the motion. (See *Gamboa*, supra, 72 Cal.App.5th at p. 165.)

Once the moving party meets their burden, the opposing party may produce evidence challenging the authenticity of the document. (See *Gamboa*, supra, 72 Cal.App.5th at p. 165.) The opposing party may do so by “[testifying] under oath or declare under penalty of perjury that the party never saw or does not remember seeing the agreement.” (*Ibid.*) If this burden is met, the burden shifts back to the moving party to prove the contract is authentic, including the authenticity of the signatures. (See *Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 845-846.) Doubts are resolved in favor of arbitrability and ordinary rules of contract interpretation (e.g., resolve doubts against the drafter) apply. (See *Greenspan v. LADT, LLC* (2010) 185 Cal.App.4th 1413, 1437.)

Here, Plaintiff has put forth a copy of the parties' arbitration agreement. (See Pet., Exh. B.) Defendant does not dispute the validity of the arbitration agreement or its purported signatures. Thus, Plaintiff has proven the existence of a valid arbitration agreement between the parties. (See Gamboa, supra, 72 Cal.App.5th at pp. 164-165.)

Given that Defendant does not oppose Plaintiff's motion, the motion shall be granted and the parties are ordered to submit the fee dispute to binding arbitration pursuant to the procedures set forth in paragraph 20 of the August 29, 2023 fee agreement attached to the Petition as Exhibit A.

Plaintiff also requests the Court select the arbitrator. However, the Court finds that to be premature as the parties have not attempted to follow the arbitrator selection process set forth in the parties agreement. (See Petition, Exh. A, par. 20.A.(3).) If the parties are unable to select an arbitrator through that process, or Respondent refuses to participate in the selection process, Petitioner may apply ex parte for the appointment of an arbitrator at that time.

CONCLUSION

For the foregoing reasons, Plaintiff's Motion to Compel Arbitration is GRANTED. The parties are ordered to submit the fee dispute to binding arbitration pursuant to the procedures set forth in paragraph 20 of the August 29, 2023 fee agreement attached to the Petition as Exhibit A.